

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

3. TAMARA MOORE V. STEVEN BUTRICK, JR.

24FL0458

On November 10, 2025, Respondent filed a Request for Order (RFO) seeking custody and visitation orders, as well as attorney's fees and child support. He filed his Income and Expense Declaration concurrently therewith. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on December 12, 2025.

Neither party appeared for the scheduled CCRC appointment.

The parties attended a hearing on the RFO on February 19, 2026 and noted faulty service of the moving papers. They stipulated to be re-referred to CCRC and continue the matter to the present date. The court adopted the stipulation and reserved jurisdiction over support back to the date of filing the RFO.

All required documents were properly served on February 13, 2026, and the parties attended the re-set CCRC appointment on March 27, 2026. They were able to reach agreements on the issues of custody and visitation. A report with those agreements was prepared and mailed to the parties on March 27, 2026.

Respondent is requesting joint legal and physical custody of the minor child. He further requests a modification of child support or, alternatively, the issue of child support to be set for an evidentiary hearing. He requests an order for Respondent to serve updated financial disclosures with an order that failure to comply will result in adoption of Respondent's estimated income of Petitioner. He asks that Respondent be ordered to pay Petitioner's attorney's fees and sanctions against Respondent though since Respondent is the moving party, the court presumes that these requests are made with regard to Petitioner.

Petitioner has not filed a Responsive Declaration to Request for Order or his Income and Expense Declaration. And Respondent has not filed an updated Income and Expense Declaration since the original filing of the RFO.

"For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. "'Current' means the form has been completed within the past three months providing no facts have changed." Cal. Rule Ct. 5.260(3).

The request to modify child support is denied due to Respondent's failure to file an updated Income and Expense Declaration.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

Respondent's request for attorney's fees is likewise denied. In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2). In order for the court to make such findings, the court is in need of Respondent's updated Income and Expense Declaration. Without that, the court cannot make the requisite findings and the request for attorney's fees is therefore, denied.

The court reserves on Respondent's request for Section 271 sanctions until the time of trial.

Regarding custody, the court finds the agreements contained in the March 27, 2026 CCRC report to be in the best interests of the minor. They are hereby adopted as the orders of the court.

Finally, turning to the request for updated financial information, Respondent asks that Petitioner be compelled to serve the following: (1) a completed and signed Income and Expense Declaration; (2) copies of all pay stubs for the last two months showing year-to-date income; (3) most recent federal and state tax returns with all schedules and attachments; (4) a profit and loss statement for the last 12 months covering any self-employment; and (5) documentation of any other income sources (e.g., 1099s, rental income, bonuses), including monthly statements from January 2025 to the present from Venmo, PayPal, Cash App, bank records, sponsorship agreements, and business records from Gold Rush Gymkhana, C3 Ranch, and the like. Respondent is essentially filing a motion to compel without having served formal discovery requests. Accordingly, the request to compel updated financial disclosures is denied without prejudice as Respondent has not served Petitioner with formal discovery requesting the above. That said, Petitioner is reminded of her "...*continuing duty* to immediately, fully, and accurately update and augment..." her disclosures with all material information. Fam. Code § 2100(c). Failure to do so is a violation of that party's fiduciary duty and may subject that party to sanctions pursuant to Family Code § 1101.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: RESPONDENT'S REQUESTS FOR CHILD SUPPORT AND ATTORNEY'S FEES ARE DENIED DUE TO FAILURE TO FILE A CURRENT INCOME AND

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

EXPENSE DECLARATION. THE COURT RESERVES ON RESPONDENT'S REQUEST FOR SECTION 271 SANCTIONS UNTIL THE TIME OF TRIAL.

THE REQUEST TO COMPEL UPDATED FINANCIAL DISCLOSURES IS DENIED WITHOUT PREJUDICE AS RESPONDENT HAS NOT FIRST SERVED PETITIONER WITH FORMAL DISCOVERY REQUESTING THE ABOVE. THAT SAID, PETITIONER IS REMINDED OF HER "...*CONTINUING DUTY* TO IMMEDIATELY, FULLY, AND ACCURATELY UPDATE AND AUGMENT..." HER DISCLOSURES WITH ALL MATERIAL INFORMATION. FAM. CODE § 2100(C). FAILURE TO DO SO IS A VIOLATION OF THAT PARTY'S FIDUCIARY DUTY AND MAY SUBJECT THAT PARTY TO SANCTIONS PURSUANT TO FAMILY CODE § 1101.

REGARDING CUSTODY, THE COURT DOES FIND THE AGREEMENTS CONTAINED IN THE MARCH 27, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

4. LISA PURVES V. SCOTT PURVES

PFL20010383

On November 17, 2025, Petitioner filed a Request for Order (RFO) seeking division of the pension plan. Given that this is a post-judgment request, the RFO and all other required documents were personally served on December 26th, however, the original Proof of Service states that service was on December 26, 2026, not December 26, 2025. Respondent has not filed a Responsive Declaration to Request for Order. Petitioner was ordered to correct the Proof of Service and the matter was continued to the present date.

A corrected Proof of Service was filed on March 10, 2026, indicating personal service of all required documents on December 16, 2025.

On May 12, 2025, Petitioner filed a Supplemental Declaration and a Declaration of Callie B. Cambridge in Support of Petitioner's Request for Attorney Fees and Costs. Both documents were mail served on May 12th.

Petitioner is requesting equal division of community interest in Respondent's Operating Engineers Pension Plan (OE3) at shared costs. She further requests attorney's fees and costs pursuant to Family Code § 2556, 2032, and Civil Procedure § 128.5.

Respondent filed a Responsive Declaration to Request for Order on May 15, 2026. It was not served until May 18th. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made May 8th the last day for filing of the responsive declaration therefore, it is late filed and has not been read or considered by the court.

A joinder for the pension plan has been filed but it does not appear that the Summons and joinder documents have been served.

Petitioner's request for equal division of the OE3 pension plan is granted. The parties are ordered to equally share in the costs of preparing the QDRO. Respondent is ordered to provide all necessary information to facilitate the preparation of the QDRO no later than June 21, 2026.